

SUPERIOR COURT OF CALIFORNIA  
COUNTY OF SAN FRANCISCO  
UNIFIED FAMILY COURT

JEFFREY CHRISTOPHER GALLAGHER,

Petitioner

VS.

KIMBERLY MARIE GALLAGHER,

Respondent

) Case Number: FDI-17-788705

) Hearing Date: August 25, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

**TENTATIVE RULING**

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

**A. Procedural History**

- 1) Petitioner Jeffrey Gallagher (Father) and Respondent Kimberly Gallagher (Mother) have two minor children together, Lilah (DOB 8/23/2012, age 14) and Poppy (DOB 7/22/2014, age 12). The parties have shared joint legal and physical custody since 2019. On 8/27/2024, after Father moved to Hollister, the Court modified the parenting time and holiday schedule.
- 2) At a 3/26/2026 hearing on Father's request for modification of parenting time, the parties met with the volunteer attorney of the day and reached an agreement for specific daytime and weekend visits and travel time for Father as well as a regular schedule for Father to have the second and fourth weekends of the month from Friday at 5:30pm to Sunday at 7pm. The parties also set a dinner visit schedule for Father for the rest of the school year and agreed to meet with a mediator or coparenting counselor to determine the schedule for the new school year. The parties also requested a review hearing, and a hearing was set for 8/25/2026.
- 3) Both parties have submitted update declarations. Father requests parenting time on alternating weekends from Thursday after school to Monday morning drop off (or Tuesday morning drop off

1 if Monday is a school holiday) and for the weekday dinner visits to go from 5:30pm to 9pm  
2 instead of until 8pm. He states that 2.5 hours for dinner visits is insufficient because it requires  
3 him to end the visit at 7:40pm to leave time for drop off. He also asks for shared transportation  
4 responsibilities. Finally, he describes a recent conflict that arose relating to one of the children's  
5 makeup bag and asks for a "clear provision" permitting the children to bring their personal  
6 belongings such as clothing and makeup between households.

- 7 4) Mother opposes Father's request to change the current schedule, which she states "is itself a  
8 recent substantial increase" to which the children are still adjusting. She expresses concern about  
9 Father's ability to consistently transport the children to their activities and states he did not  
10 exercise his visits when he took a personal trip to Ireland. Mother opposes Father's request for  
11 shared transportation responsibilities, stating she already performs a significant amount of  
12 transportation for all school, sports, extracurricular, social, and other activities. Finally, she  
13 explains why she believes an order regarding the children's personal belongings is not necessary.

#### 14 **B. Findings and Orders**

- 15 1) This Court has jurisdiction to make child custody orders in this case under the Uniform  
16 Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party  
17 in violation to civil or criminal penalties, or both. The country of habitual residence of the minor  
18 children is the United States.
- 19 2) The Court finds it is in the children's best interest for the parties to continue sharing joint legal  
20 and physical custody. Beginning immediately, Father's parenting time shall be as follows: (1)  
21 second and fourth weekends, from Friday at 5:30pm to Monday school drop off; (2) weekly  
22 dinner visits from 5:30pm to 8:30pm, with the parties meeting and conferring about the dates of  
23 the visits at the beginning of each month; (3) Father to conduct all transportation for all visits,  
24 except that if there are two dinner visits in any given week (one for each child) instead of one  
25 joint visit, Mother shall conduct the transportation at the end of the second dinner visit. The Court  
26 declines to issue any orders relating to the children's personal belongings.
- 27 3) The Court will prepare the Findings and Order After Hearing.
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